



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 4719 (EXTENSION)
FOURTH REVISION October 22, 1991

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 4719 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to September 30, 1996. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

107 31 1994

(DATE)

Dist: FHWA FRA

EXEMPTION HOLDER

APPLICATION DATE

Allied-Signal, Inc.
Morristown, NJ

July 14, 1994

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.



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DOT-E 4719
(FOURTH REVISION)

1. Dow Chemical, U.S.A., Freeport, Texas, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to offer packages prescribed herein of certain flammable and non-flammable gases for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the shipment of certain compressed gases most of which are not listed in 49 CFR 173.314 and 173.315, in DOT specification cargo tanks and tank cars, and provides no relief from any regulation other than as specifically stated. Each of the following is hereby granted the status of a party to this exemption:

Allied Chemical Corporation, Morristown, New Jersey - PTE-1.
Halocarbon Products Corporation, North Augusta, SC -PTE-2.

2. BASIS. This exemption is based on the November 2, 1990, application from Dow Chemical, U.S.A., submitted in accordance with 49 CFR 107.105 and the public proceeding thereon. The granting of party status is based on the following applications submitted in accordance with 49 CFR 107.111 and 107.105 and the public proceeding thereon:

Allied Chemical's applications dated November 16, 1990, and June 3, 1991.
Halocarbon Products Corporation's application dated November 8, 1990.

3. HAZARDOUS MATERIALS (Descriptor and class). Halogenated hydrocarbon gases and mixtures thereof, mixtures of halogenated hydrocarbon gases and flammable or non-flammable liquids having pressures at 115° F. not exceeding the design pressure of the cargo tanks or 3/4 times the test pressure of tank car tanks at temperatures specified in 49 CFR 173.314(d), as applicable, classed as flammable gas or nonflammable gas. Commodities must be specifically identified to, and acknowledged in writing by, the Office of Hazardous Materials Exemptions and Approvals (OHMEA) prior to the first shipment.

4. PROPER SHIPPING NAME (49 CFR 172.101). Compressed gas, n.o.s.; Chlorodifluoromethane; or Dichlorodifluoromethane, as appropriate.

5. REGULATION AFFECTED. 49 CFR 173.314(c), 173.315(a)(1), and 179.102-11.

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle and rail freight. Trailer on flat car service is not authorized.

7. SAFETY CONTROL MEASURES. Packaging prescribed is a DOT Specification MC 330 and MC 331 cargo tank or DOT Specification 105A300W, 112A340W, 114A340W, 106A500, 106A500X and 110A500W tank car tank or tank car tank complying with Specification 120A300W as proposed by the Association of American Railroads (AAR) Specifications for Tank Cars dated January 1, 1970. Each tank must be filled in accordance with the provisions of §§173.314 and 173.315, as applicable.

8. SPECIAL PROVISIONS.

a. AAR Specification 120A300W tank cars containing chlorodifluoromethane or dichlorodifluoromethane may have safety relief valves set to start-to-discharge at 247.5 psig with a start-to-discharge tolerance of plus or minus 7.4 psig and a minimum vapor tight pressure of 196 psig.

b. A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

c. Tank cars equipped with bottom outlets must have such outlets rendered inoperative and effectively sealed to preclude bottom unloading when transporting flammable gases under the terms of this exemption.

d. Tank car tanks and cargo tanks may be marked as described in §173.314(c), Note 13 and §173.315(a), Note 9, respectively.

e. Each cargo tank must be plainly marked on the right side near the front, in letters at least two inches high on a contrasting background, "DOT-E 4719." The marking on tank cars must be near other prescribed marking.

f. Persons who receive packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

g. Motor carriers operating under the terms of this exemption must have a "Satisfactory" or "Conditional" safety rating as prescribed in 49 CFR Part 385.

h. Shippers using the packaging covered by this exemption must comply with the shipping paper, marking, labeling, and placarding requirements of 49 CFR Part 172; all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 100 through 180.

9. REPORTING REQUIREMENTS. Any incident involving loss of packaging contents or packaging failure must be reported to the Associate Administrator for Hazardous Materials Safety as soon as practicable.

10. EXPIRATION DATE. November 30, 1992.

Issued at Washington, D.C.:



Alan I. Roberts
Associate Administrator for
Hazardous Materials Safety

OCT 22 1991

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590.
Attention: Exemptions Branch.

Dist: FHWA, FRA.